

16CV03591 McCoy Electric Corporation vs Annette Rubin et al

County: santa-barbara

Division: Civil Law & Motion

Department: 5 SB-Anacapa

Hearing date: 2026-09-14

Motion: Motion: Attorney Fees and Costs

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Tentative Ruling: McCoy Electric Corporation vs Annette Rubin et al

Case Number

16CV03591

Case Type

Civil Law & Motion

Hearing Date / Time

Mon, 09/14/2026 - 10:00

Nature of Proceedings

Motion: Attorney Fees and Costs

Tentative Ruling

McCoy Electric v. Anette Rubin and Stuart Rubin

Case No. 16CV03591

Hearing Date: September 14, 2026

HEARING: Motion of James Davis dba Wade Davis Design for Post-Judgment Attorneys' Fees

ATTORNEYS: For Plaintiff McCoy Electric.: Daniel E. Engel

For Defendants Annette Rubin and A. Stuart Rubin: Self- Represented

For Cross Defendant/Cross Complainant The Los Canoas Co. dba Construction Plumbing: Daniel E. Engel

For Cross Defendant/Cross Complainant James Davis dba Wade Davis Design: Daniel E. Engel

For Intervening Party U.S. Real Estate Credit Holdings III-A,

LP: Marsha A. Houston, Christopher O. Rivas

[For additional appearances see list.]

TENTATIVE RULING:

The motion of James Davis dba Wade Davis Design for post-judgment attorneys' fees is granted in the reduced amount of \$9,932.50. Costs are awarded in the amount of \$823.84.

Background:

This action arises out of a remodeling project at residential property located at 4347 Marina Drive, Santa Barbara, California 93110. The Property was owned by defendants and cross-complainants Annette Rubin and A. Stuart Rubin ("Rubins").

Plaintiff and cross-defendant McCoy Electric Corporation ("McCoy"), an electrical contractor, commenced the action on August 15, 2016, claiming that it was still owed sums for labor and materials furnished at the Property. In response, the Rubins cross-complained against McCoy and its principal, Richard McCoy, for breach of contract, negligent construction, overcharging, conversion of materials, and accounting.

The Rubins cross-complained against James Davis dba Wade Davis Design ("WDD"), The Las Canoas Co. dba Construction Plumbing ("CP"), as well as several other parties, on September 19, 2019, asserting causes of action for negligence, products liability, and breach of contract. On October 25, 2019, CP cross-complained against the Rubins, alleging a claim for breach of written settlement agreement. The Rubins dismissed their cross-complaint against CP on March 11, 2022.

WDD filed an answer to the Rubins' cross-complaint on October 30, 2019, asserting a general denial and 20 affirmative defenses. On April 1, 2020, WDD cross-complained against the Rubins, alleging a claim for breach of written contract.

On August 15, 2022, following a court trial, Judgment was entered in favor of WDD, and against the Rubins, for costs in the amount of \$435.00. Since that time, the amount has increased substantially.

On November 2, 2022, following a court trial, Judgment was entered in favor of McCoy, and against the Rubins, for \$355,279.10 in damages plus \$65,878.70 in attorney fees and costs. Since that time, the amount owed by the Rubins to McCoy has increased substantially.

On July 18, 2024, U.S. Real Estate Credit Holdings III-A, LP ("USRECH") filed a complaint in intervention for declaratory relief.

On August 8, 2024, McCoy and CP filed a cross-complaint against USRECH for declaratory relief, and on November 13, 2024, filed a first amended cross-complaint adding WDD as a cross-complainant.

The principal dispute between USRECH and Judgment Creditors relates to the priority of liens against the Rubins and various entities in which the Rubins hold an interest.

WDD now moves for post-judgment attorney fees in the amount of \$20,961.00 and costs in the amount of \$823.84 against the Rubins.

The Rubins have not filed opposition or any other response to the motion.

USRECH filed an objection to the motion, requesting that the court either deny or substantially reduce the amount requested.

Analysis:

Code of Civil Procedure section 685.040 provides:

“The judgment creditor is entitled to the reasonable and necessary costs of enforcing a judgment. Attorney’s fees incurred in enforcing a judgment are not included in costs collectible under this title unless otherwise provided by law. Attorney’s fees incurred in enforcing a judgment are included as costs collectible under this title if the underlying judgment includes an award of attorney’s fees to the judgment creditor pursuant to subparagraph (A) of paragraph (10) of subdivision (a) of Section 1033.5.”

“The judgment creditor may claim costs authorized by Section 685.040 by noticed motion. The motion shall be made before the judgment is satisfied in full, but not later than two years after the costs have been incurred.” (Code Civ. Proc., § 685.080, subd. (a).)

“[Code of Civil Procedure section 685.040] imposes just “ ‘two requirements before a motion for an award of postjudgment attorney fees may be awarded as costs: (1) the fees must have been incurred to ‘enforce’ a judgment; and (2) the underlying judgment had to include an award for attorney fees pursuant to Code of Civil Procedure section 1033.5, subdivision (a)(10)(A)....’ ” [Citation.]” (Cardinale v. Miller (2014) 222 Cal.App.4th 1020, 1025.)

The underlying judgment in this action does include an award of attorney fees and WDD’s counsel is entitled to fees and costs incurred in enforcing the judgment.

Code of Civil Procedure section 685.080 provides:

“(a) The judgment creditor may claim costs authorized by Section 685.040 by noticed motion. The motion shall be made before the judgment is satisfied in full, but not later than two years after the costs have been incurred. The costs claimed under this section may include, but are not limited to, costs that may be claimed under Section 685.070 and costs incurred but not approved by the court or referee in a proceeding under Chapter 6 (commencing with Section 708.010) of Division 2.

“(b) The notice of motion shall describe the costs claimed, shall state their amount, and shall be supported by an affidavit of a person who has knowledge of the facts stating that to the person’s best knowledge and belief the costs are correct, are reasonable and necessary, and have not been satisfied. The notice of motion shall be served on the judgment debtor.

Service shall be made personally or by mail.

“(c) The court shall make an order allowing or disallowing the costs to the extent justified under the circumstances of the case.”

“[T]he fee setting inquiry in California ordinarily begins with the ‘lodestar,’ i.e., the number of hours reasonably expended multiplied by the reasonable hourly rate. ‘California courts have consistently held that a computation of time spent on a case and the reasonable value of that time is fundamental to a determination of an appropriate attorneys’ fee award.’ [Citation.] The reasonable hourly rate is that prevailing in the community for similar work. [Citation.] The lodestar figure may then be adjusted, based on consideration of factors specific to the case, in order to fix the fee at the fair market value for the legal services provided. [Citation.] Such an approach anchors the trial court’s analysis to an objective determination of the value of the attorney’s services, ensuring that the amount awarded is not arbitrary. [Citation.]” (PLCM Group v. Drexler (2000) 22 Cal.4th 1084, 1095.)

“[T]he verified time statements of the attorneys, as officers of the court, are entitled to credence in the absence of a clear indication the records are erroneous.” (Horsford v. Board of Trustees of California State University (2005) 132 Cal.App.4th 359, 396.)

“[T]rial courts must carefully review attorney documentation of hours expended” in assessing reasonable and necessary attorney fees. (Ketchum v. Moses (2001) 24 Cal.4th 1122, 1132.) “The ‘experienced trial judge is the best judge of the value of professional services rendered in his court, and while his judgment is of course subject to review, it will not be disturbed unless the appellate court is convinced that it is clearly wrong.’ ” (Ibid.)

“ ‘[A] reasonable hourly rate is the product of a multiplicity of factors . . . the level of skill necessary, time limitations, the amount to be obtained in the litigation, the attorney’s reputation, and the undesirability of the case.’ ” (Margolin v. Regional Planning Com. (1982) 134 Cal.App.3d 999, 1003–1004.)

“[T]he [party] . . . seeking fees and costs ‘bear[s] the burden of establishing entitlement to an award and documenting the appropriate hours expended and hourly rates.’ ” [Citation.]” (Christian Research Institute v. Alnor (2008) 165 Cal.App.4th 1315, 1320.) “‘To that end, the court may require [a] defendant[] to produce records sufficient to provide ‘a proper basis for determining how much time was spent on particular claims.’ ” [Citation.]” (Ibid.) “The evidence should allow the court to consider whether the case was overstaffed, how much time the attorneys spent on particular claims, and whether the hours were reasonably expended. [Citation.]” (Ibid.)

“A trial court may not rubber stamp a request for attorney fees, but must determine the number of hours reasonably expended.” (Donahue v. Donahue (2010) 182 Cal.App.4th 259, 271.)

WDD has produced time records that reflect the following time:

November 12, 2024: Apply for Writ of Execution; 2 hours;

November 15, 2024: Prepare docs for book levy; telcons Sgt. Fernandez; 2 hours;

November 18, 2024: Perform 2nd book levy; 1 hour;

December 5, 2024: File notice of judgment lien; .5 hours;

December 10, 2024: Draft, serve, and file motion for charging order; 5 hours;

February 26, 2025: Draft and file reply iso motion for charging order; 4.6 hours;

March 3, 2025: Attend hearing on motion for charging order; 1 hour;

March 4, 2025: Draft, serve, and file proposed charging order; 1 hour;

May 14, 2025: Draft, serve, and file notice of entry of charging order with cover letter; 1 hour;

August 4, 2025: Draft and file renewal of judgment; 1 hour;

September 10, 2025: Apply for second writ of execution; 2 hours;

September 15, 2025: levy second writ of execution; 1.5 hours;

September 25, 2025: Draft, serve, and file motion to charge ASR's interest in RPPLP; 1.5 hours;

October 7, 2025: File notice of judgment lien; .5 hours;

May 21, 2026: Prepare and file motion for post judgment fees; 6 hours.

In objecting to the request, USRECH argues: (1) The motion is simply a recycled, stripped-down copy of the CP fees motion filed on April 29, 2025, (2) the billing entries are impermissibly vague and block-billed, (3) the motion seeks fees reflecting work performed in connection with litigating against USRECH, (4) Attorney Engel's fee arrangement with Davis appears to be a contingency arrangement that raises double-dipping concerns, (5) the rate comparison to USRECH's counsel is "entirely inapt," and (6) WDD and Engel have established a pattern of seeking unreasonable fees that this court has previously rejected.

The court agrees with the first and sixth arguments and rejects the others.

The motion is not an original motion, and it did not take 6 hours to draft. It is clearly a recycling of the CP motion filed on April 29, 2025. As USRECH points out, the fact that there are changes that were missed is definitive evidence that the motion was simply recycled. The representation that it took 6 hours is not credible and raises concerns that other time was inflated. The court finds the following time should be reduced to reflect reasonable attorney time spent on the claimed tasks:

November 12, 2024: Apply for Writ of Execution will be reduced to 1 hour;

December 10, 2024: Draft, serve, and file motion for charging order will be reduced to 1 hour;

February 26, 2025: Draft and file reply iso motion for charging order will be reduced to 1 hour;

August 4, 2025: Draft and file renewal of judgment will be reduced to .5 hours;

September 10, 2025: Apply for second writ of execution will be reduced to .5 hours;

May 21, 2026: Prepare and file motion for post judgment fees will be reduced to .5 hours.

After having thoroughly reviewed all of the time entries the court finds that WDD has met its burden of showing entitlement to fees for 14.5 hours reasonably spent in enforcement of the judgment against the Rubins. The requested rate of \$685 per hour is reasonable and comparable to other similarly skilled attorneys in Santa Barbara County. Total fees awarded will be \$9,932.50. The court accepts WDD's representation, and entries included in the spreadsheet, that it incurred costs in the amount of \$823.84 related to enforcement of the judgment against the Rubins.

Judges

Judge Colleen Sterne

Dept. 5 SB-Anacapa

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